

GZ: 2022-0.792.182 dated November 21, 2022 (Case Number: DSB-D124.5017)

[Note by the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected. The name of the respondent as a public law entity has not been pseudonymized, as its legally defined tasks in labor market policy are mentioned in the text of the reasoning, and therefore a meaningful and context-preserving pseudonymization of the name in this decision to be published according to § 23 para. 2 DSG was not possible.]

DECISION RULING

The Data Protection Authority decides on the data protection complaint of A*** & B*** Betriebs GmbH (complainant), represented by Mag. F***, Mag. T*** Rechtsanwälte OG, dated September 21, 2021, against the Arbeitsmarktservice (respondent) for violation of the right to confidentiality as follows:

1. The complaint regarding a violation of the right to confidentiality is dismissed as unfounded.
2. The supplementary complaint of the complainant dated November 2, 2022, regarding a violation of the right to information is rejected.

Legal Basis: §§ 1, 18 para. 1 as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), BGBl. I No. 165/1999 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. The complainant stated in its initiating submission dated September 21, 2021, that it considers its right to confidentiality to be violated by the respondent, as the respondent used its data in 2021 without its consent or commission to unsolicitedly and unnecessarily refer individuals as workers to the complainant.
2. The respondent countered in its statement dated October 21, 2021, that the complainant had posted a job advertisement on its homepage on June 14, 2020, and that the respondent had subsequently found this information freely available on the internet and had automated a reference (link) to it on a self-provided, structured, and freely accessible job platform. The complainant also did not take any steps to prohibit crawling technologies from capturing the job advertisement.

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3. The complainant stated in her submission dated December 15, 2021, that the fact that the homepage of the complainant is a publicly accessible homepage only means that anyone can view it if they search for the complainant, but it does not mean that the facts derived from the homepage are generally known or judicially cognizable. Therefore, it cannot simply be said that the data is generally available. Furthermore, the current use of the complainant's data from her homepage is not limited to mere reproduction, as it involved a link on the homepage of the respondent.

4. The respondent stated in a further submission dated September 20, 2022, that according to the complainant's assertions, the mediation activity subject to the complaint took place a few days before March 22, 2021. Specifically, it concerned advertisements listed in the online output area of the AMS web application "JobRoboter" for two positions, namely one for a technician and one for an office employee. It was neither a personal service activity by consultants of the respondent nor was a completely automated copy of the advertisement created; rather, only rudimentary framework information about the position was displayed in the web advertisement of JobRoboter, which only led the user directly to the job website managed by the complainant when the integrated link in the advertisement was activated (i.e., by "clicking"). The complainant could have prevented this, either by removing the relevant job advertisement from her online listing or by marking her position as inactive according to the recognized state of the art for internet-acting participants (natural persons and automated acting participants such as the JobRoboter of AMS). However, the complainant, by moving the advertisement to the archive area, only focused on perception by natural persons and failed to choose a perception form for marking as inactive that would also be appropriate for automated

participants according to the state of the art; otherwise, the JobRoboter would have generally dissolved the generated link to the complainant's job advertisement within 24 hours. The complainant's argument that general availability of the data is not applicable due to a limited circle of persons is also unfounded, as the complainant failed to take the possible precautions expected from an average internet user managing a business to achieve the greatest possible limitation of the advertisement's use.

5. The complainant responded in her submission dated November 2, 2022, that the respondent has not yet fulfilled the complainant's right to information, and therefore, the complaint will also assert, in addition to the violation of the right to confidentiality, as already claimed in the application to the data protection authority, the violation of the right to information.

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expressly maintained. Whether an active mediation activity took place by the respondent or not does not change the processing of the data by the respondent and the sub-case falls within the scope of the DSG. It is also not the task of the complainant to ensure, through advertisements to be made "according to the state of the art," that third parties, even through an automated crawler, are not enabled to interfere with the fundamental right to data protection; rather, it is the task of the respondent to program their application in such a way that impermissible interferences do not occur at all. Furthermore, the respondent overlooks the decision of the data protection authority regarding land register data dated April 23, 2019, DSB-D123.626/0006-DSB/2018: just because data can be viewed by anyone does not mean that the facts available on the complainant's homepage are generally known or that the data is thereby generally accessible. Regardless, not all data that has been published or is publicly accessible may be used by a responsible party for any arbitrary purposes.

B. Subject of the Complaint

The subject of the complaint is the question of whether the respondent has violated the complainant's right to confidentiality by publishing data from a job advertisement on the respondent's own homepage.

C. Findings of Fact

1. The respondent is a public law service company. It is responsible for the federal labor market policy.
2. The respondent searches for open job offers on the websites of companies using an algorithm in order to subsequently publish them on the respondent's homepage ("AMS Job Robot").
3. In this process, the information consists of rudimentary framework information about the position taken from the original advertisement in the web display of the Job Robot. In addition, a link integrated into the advertisement leads directly to the job website of the respective company.
4. When the original job advertisement is taken offline, the job advertisement on the respondent's homepage is also removed.
5. The updating of job offers usually occurs within 24 hours.

Evaluation of Evidence: The findings made are based on internal correspondence submitted with the statement of December 15, 2021, on the part of the respondent, as well as the supplementary statement of the respondent dated September 20, 2022.

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6. On October 14, 2020, and May 7, 2021, job advertisements were published on the complainant's homepage.

7. The respondent subsequently took data from the complainant's job advertisement and published it on the job platform on its homepage. Furthermore, a link integrated into the advertisement led directly to the job advertisement on the complainant's website.

Evaluation of Evidence: The findings made are based on the undisputed statements of the respondent in its statement of December 15, 2021, and the internal correspondence submitted with it, as well as the supplementary statement of the respondent dated September 20, 2022.

D. Legally, it follows:

Regarding Point 1

a) On the Active Legitimacy of the Complainant

The data protection authority has repeatedly stated that legal entities are also subject to the protection scope according to § 1 DSG and are legitimized to assert their rights granted therein, including filing a complaint according to § 24 DSG (see in detail the decision of the data protection authority dated May 25, 2020, GZ: D124.1182, 2020-0.191.240).

b) On the Right to Confidentiality

According to § 1 para. 1 DSG, everyone has the right to confidentiality of their personal data, provided there is a legitimate interest in doing so. The existence of such an interest is excluded if data is not accessible to a confidentiality claim due to its general availability or its lack of traceability to the affected individual.

The general assumption of the non-existence of a violation of legitimate confidentiality interests for lawfully published data does not apply within the scope of the GDPR (see already the decision of the DSB dated October 31, 2018, GZ DSB D123.076/0003 DSB/2018 with references), however, the application of the GDPR is limited according to Art. 1 GDPR to the processing of personal data of natural persons. However, the complainant is a legal entity, which means that the scope of the GDPR is not opened and the exception for generally available data according to § 1 para. 1 DSG must be observed.

"Generally available" are data if they are open to an unlimited, individually unspecified user group (see OGH dated September 3, 2002, 11 Os 109/01; DSK dated February 25, 2009,

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K121.419/0007-DSK/2009). Whether data can be classified as "generally available" requires an examination on a case-by-case basis, particularly considering whether general accessibility actually still exists at the time of intended use (see the explanatory remarks on the draft of § 1 DSG 2000, 1613 BlgNR 20. GP 34 f).

In this case, the complainant published the job advertisement on their own homepage; the homepage of the complainant is freely accessible and publicly available to a wide, unrestricted group of individuals. It should also be noted that—contrary to what the complainant believes—no informational added value was created in this instance, as only data from the job advertisement was reproduced, and this was published for the same purpose—namely, the recruitment of employees for the complainant. The processing by the respondent also only occurred as long as the job advertisement was published on the complainant's homepage or, possibly, insignificantly longer, as job postings at the respondent are generally updated within 24 hours by the implemented algorithm.

The decision cited by the complainant from the Data Protection Authority dated April 23, 2019, DSB-D123.626/0006-DSB/2018, regarding the protectability of data from public registers such as the land register is not comparable in this respect, as the publication of this data did not occur by the affected individuals themselves, an informational added value was created with the use of this data, and therefore it was not merely a reproduction. Furthermore, the data processing ultimately took place within the scope of the GDPR, meaning that the exception from the protection area due to a lack of protectable interest could not apply. Therefore, it must be assumed that the data from the job advertisement published on the complainant's homepage is generally available.

However, even if one assumes that these are not generally available data, and thus the scope of § 1 para. 1 DSG is opened, this intervention would be justified for the following reasons:

The respondent is a public law corporation, and according to § 1 AMStG, it is responsible for federal labor market policy. The respondent can thus be qualified as an "authority" in a functional sense; interventions by a state authority into the right to confidentiality are only permissible according to § 1 para. 2 DSG based on laws (see also Art. 18 B-VG). Such laws must be sufficiently precise, meaning they must regulate in a foreseeable manner for everyone under what conditions the collection or use of personal data for the performance of specific administrative tasks is permissible, thus exhibiting a sufficiently high degree of determinacy (VfSlg. 18.643/2008; see also the ruling of the Constitutional Court from December 12, 2019, regarding G 164/2019-25 and G 171/2019-24).

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According to
§ 29
AMSG,
the objective
of the respondent
is to promote
the matching

of labor supply and demand, thereby ensuring the best possible provision of the economy with labor and the employment of all individuals available to the Austrian labor market. According to paragraph 2 of the same provision, the respondent is required to provide, among other things, services aimed at efficiently facilitating the placement of suitable workers in jobs (Z 1) and counteracting the lack of clarity in the labor market (Z 3). The respondent must provide its services in accordance with § 32 AMSG in the form of services whose purpose is the placement of job seekers in open positions, the securing of employment, and the securing of existence in the sense of § 29 of the same provision. This also includes, according to § 32 paragraph 2 AMSG, information about the labor market and the world of work (Z 1), support for companies in the search and selection of suitable workers (Z 5), as well as support for job seekers in the search and selection of a job (Z 6).

The publication of data concerning the complainant was based on these tasks legally assigned to the respondent and took into account the principle of data minimization according to Art. 5 para. 1 lit. c GDPR, as only rudimentary framework information about the position from the original advertisement was adopted and, furthermore, an integrated link was provided directly to the corresponding job advertisement on the complainant's website. The publication of information about job offers on the respondent's website also occurs only as long as the respective job advertisement is accessible on the website of the respective employer.

As a result, the respondent could also rely on a legal basis in the sense of § 1 para. 2 DSG, which is why the complaint was to be dismissed as stated.

Regarding item 2

To the extent that the complainant, in its latest statement dated November 2, 2022, asserted that it maintains its complaint regarding the violation of the right to confidentiality "as already asserted in the application to the DSB," also explicitly regarding the violation of the right to information, it is pointed out that no such request for a determination regarding the right to information was discernible from the initial complaint. In this, the (legally represented) complainant, using the standard form for complaints regarding a violation of the fundamental right to confidentiality according to § 1 para. 1 DSG, merely stated generally in the context of its factual presentation, "A request from the legal representatives for disclosure of what other data about the complainant is stored and processed remained unanswered."

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In interpreting submissions, not only the wording of the complaint but also the intent of the party is relevant, provided that the subject matter of the proceedings – even if interpreted according to the provisions of §§ 6 and 7 ABGB – is clearly recognizable, thus without the possibility of confusion (VwGH 13.11.2014, Ra2014/12/0010). For the assessment of a submission, it is therefore not the designations and incidental verbal forms that matter, but the content of the submission, that is, the recognizable or inferable goal of a party's action (VwGH 27.11.1998, 95/21/0912). However, it cannot be derived here that the complainant intended to submit a request for a determination of a violation of the right to information with the above-cited complaint submission dated September 21, 2021. However, within the framework of an interpretation of the submission dated November 2, 2022, such a request can now be derived. This, however, constitutes a new, different, and supplementary submission and thus a new subject of the complaint, which affects the nature of the subject matter of the proceedings according to § 13 para. 8 AVG (see also the decision of the BVwG dated October 20, 2021, GZ W211 2231475-1/9E).

In this context, the supplementary complaint submission was to be rejected according to § 13 para. 8 AVG. However, the complainant is not precluded from submitting a new complaint to the Data Protection Authority in this regard.

It was therefore to be decided as stated overall.